

14. Trustee may not be receiver of the trust estate at a salary.—Thus, the trustee of an estate cannot be appointed

Dema. 477. After estate is settled and balance remains in his hands, an annual account being rendered, the trustee may retain a commission on the income; *Re Mason*, 98 N. Y. 527. The compensation is based on the real value of the estate, not on the value of the life interest; *Phoenix v. Phoenix*, 28 Hun, 629; trustee is not estopped by delay from claiming his commission; *Wister's App.* 86 Pa. St. 160. No commission will be allowed on fund received from predecessor unless litigation was necessary to obtain it, then legitimate expenses will be allowed; *Jenkins v. Whyte*, 62 Md. 427; where goods were consigned to a house of which one of the trustees was a member, a commission was allowed, and the rule allowing the trustee no profit from the estate was held inapplicable; *Turnbull v. Pomeroy*, 140 Mass. 117. Surrogate may allow commissions, one-half for receipts and one-half for payments; *Re Roosevelt*, 5 Redf. 601. Payments by the trustee to the *cestui que trust* are not "disbursements" within the meaning of a decree of court allowing commissions on disbursements; *Whyte v. Dimmock*, 55 Md. 452; the services and expenditures of the trustee must be within the line of the duties required of him by the declaration of trust; *Tracy v. Gravois R. R. Co.* 84 Mo. 210. Compensation and expenses allowed on compromise settlement of suit; *Lanier v. Brunson*, 21 S. C. 41; but not if it is a suit which the trustee should have avoided; *Page v. Boynton*, 63 N. H. 190; also allowed during the pendency of a bill of interpleader; *Daniel v. Fain*, 5 Lea (Tenn.) 258. A lawyer, who is a trustee, may be allowed compensation for his professional services; *Perkins's App.* 108 Pa. St. 314; 56 Am. Rep. 208; and an attorney engaged by a trustee to defend an illegal suit is entitled to compensation though the trustee is a defaulter and absconds without paying him; *Manderson's App.* 113 Pa. St. 631. A trustee will not be discharged for receiving small sums as presents; *Jacobus v. Munn*, 37 N. J. Eq. 48. If a trustee is allowed a double or triple commission on the principal, he will receive the same on the income; *Waters v. Faber*, 2 *Dema.* 290; where a certain sum was allowed in lieu of commissions it covered everything; *Brownson v. Roberts*, 5 Redf. 576. An administrator with the will annexed and trustee, whose letters were revoked, entitled to no compensation; *Re Baker*, 35 Hun, 272. If a trustee resigns for his own convenience, he is entitled to a commission on income only. *Re Allen*, 29 Hun, 7. Trustee waives commissions to a certain date, but that does not prejudice his claim to them since that time; *Denmead v. Denmead*, 62 Md. 321; if trustee makes gift of services he can have no compensation; *Vestry v. Barksdale*, 1 Strob. Eq. 197; *Haglar v. McCombs*, 66 N. C. 345; nor does he necessarily forfeit his commissions by his irregularities provided they have worked no harm; *Morgan v. Morgan*, 4 *Dema.* 353. Commissions may be fixed by agreement with the *cestui que trust*; *Bowker v. Pierce*, 130 Mass. 262. For time of payment of commissions, see *Myers v. Fenn*, 5 Wall. 205; *Burckmyer v. Beach*, 7 Rich. Eq. 487. If a trustee fails to keep proper accounts and make proper returns, no compensation will be given him; *Marcy's Acc't*, 24 N. J. Eq. 451; *Kenan v. Hall*, 8 Ga. 417; but this is far from universal; *Wistar's App.* 54 Pa. St. 60; *Gee v. Hicks*, Rich. Eq. Cas. 5; *Kee v. Kee*, 2 Gratt. 116; *Myers' App.* 62 Pa. St. 104; *Parker's Est.* 64 Pa. St. 307.

For the amount of compensation, and the method of determining it, see the statutes of the various states. Delaware, Ohio, and Illinois appear to be quite exceptional, in disallowing compensation to the trustee.